

THE WAY

Filing-Ready Incorporation & Founding Board Execution Packet

Tennessee charter data, corporate bylaws interface, incorporator action, initial board organization, officer appointments and signature instruments

Version 1.2 | September 21, 2026

Working legal/operational package for UNDECIDED - not a substitute for attorney or tax-professional review

1. Status and execution boundary

This packet is designed to be substantially complete before the final legal name, additional directors, Secretary, and street addresses are known. Bracketed fields are controlled execution gates rather than missing drafting work.

Current hard gates: Do not file until a clearable legal name is selected, at least three natural-person directors are identified for the corporation, a President and a different person as Secretary are available, and registered/principal office information is ready for the filing. Tennessee currently requires a board of at least three natural persons and requires President and Secretary to be different individuals.

Item	Current decision	Execution status
Entity type	Tennessee public benefit religious nonprofit corporation	WORKING DECISION
Statutory members	No statutory members at formation	WORKING DECISION - confirm before filing
Fiscal year	Calendar year ending December 31	FIXED
Founder	Thomas Carter - Founder; intended President/Executive Director	PROVISIONAL UNTIL BOARD APPOINTMENT
Board size	Legal floor 3; formation target 5; mature target 7-11	DESIGN BASELINE
Board independence	Formation majority independent; mature target $\geq 2/3$ independent	DESIGN BASELINE
Legal name	[[LEGAL_NAME]], Inc.	OPEN
Registered agent	Founder intended	READY SUBJECT TO ADDRESS
Registered office	[[REGISTERED_OFFICE]]	OPEN
Principal office	[[PRINCIPAL_OFFICE]]	OPEN

2. Tennessee charter filing data sheet

Use this sheet to populate the Tennessee Secretary of State's then-current domestic nonprofit charter filing interface/form. The state currently lists the domestic nonprofit charter (SS-4418) at a \$100 filing fee; verify immediately before submission.

Field	Proposed entry / instruction
Corporate name	[[LEGAL_NAME]], Inc. - must pass Tennessee availability/confusion review.
Type	Public benefit corporation; religious corporation where the form or attachment permits classification.
Members	The corporation WILL NOT have members within the meaning of the Tennessee Nonprofit Corporation Act.
Principal office	[[PRINCIPAL_OFFICE]]
Registered agent	Thomas Carter
Registered office	[[REGISTERED_OFFICE_TENNESSEE]]
Incorporator	Thomas Carter - address [[INCORPORATOR_ADDRESS]]
Initial directors	Either list in charter if chosen or elect through incorporator organizational action after filing. Final approach to be selected immediately before filing.
Fiscal year	December 31
Effective date	Upon filing unless a delayed effective date is specifically desired.

2.1 Proposed charter attachment language

The following is model substantive language for attorney review and attachment/inclusion where appropriate. It should be reconciled to the Secretary of State filing fields rather than duplicating fields unnecessarily.

ARTICLE 1 - NAME

The name of the corporation is [[LEGAL_NAME]], Inc. (the "Corporation").

ARTICLE 2 - CHARACTER

The Corporation is organized as a Tennessee nonprofit public benefit religious corporation. It shall have no members within the meaning of the Tennessee Nonprofit Corporation Act.

ARTICLE 3 - PURPOSES

The Corporation is organized and shall be operated exclusively for religious, charitable, and educational purposes within the meaning of section 501(c)(3) of the Internal Revenue Code, including advancement of religion; public worship and prayer; religious and ethical formation; historical, linguistic, philosophical, and comparative study of religious traditions; publication and education; charitable assistance; community service; pastoral and spiritual care; development and support of Houses of Prayer and related religious communities; and any other lawful activities that further such exempt purposes.

ARTICLE 4 - SECTION 501(c)(3) LIMITATIONS

No part of the net earnings of the Corporation shall inure to the benefit of, or be distributable to, any director, officer, founder, employee, or other private person, except that the Corporation is authorized to pay reasonable compensation for services actually rendered and to make payments and distributions in furtherance of its exempt purposes. No substantial part of the activities of the Corporation shall consist of carrying on propaganda or otherwise attempting to influence legislation except to the extent permitted for an organization described in section 501(c)(3). The Corporation shall not participate or intervene in any political campaign on behalf of or in opposition to any candidate for public office. The Corporation shall not conduct activities prohibited to an organization exempt under section 501(c)(3) or contributions to which are deductible under section 170(c)(2).

ARTICLE 5 - FOUNDATIONAL RIGHTS AND ANTI-COERCION LIMITS

The Corporation shall operate in a manner consistent with freedom of conscience, voluntary participation, safe exit, safeguarding of children and vulnerable persons, non-retaliation for good-faith complaints or criticism, financial integrity, and the principle that no living founder, officer, minister, director, council, or other person possesses inherent infallibility or unlimited institutional authority. Claimed revelation or spiritual discernment shall not by itself override civil law, safeguarding duties, fiduciary controls, governing documents, or another adult's legal or personal consent.

ARTICLE 6 - BOARD

The affairs of the Corporation shall be managed under the direction of a Board of Directors in accordance with the bylaws. The Board shall consist of not fewer than three natural persons. The bylaws may establish a larger fixed number or a range. The Corporation intends to maintain an independent governing structure and to limit concentration of financial, executive, and religious authority.

ARTICLE 7 - FOUNDER STATUS

Founder status is historical only. It does not confer ownership, a property interest, permanent office, doctrinal infallibility, unilateral amendment authority, veto power, succession authority, entitlement to compensation, immunity from discipline, or a right to appoint a permanent board majority.

ARTICLE 8 - DISSOLUTION

Upon dissolution, after paying or making provision for liabilities, the Corporation shall distribute its remaining assets exclusively for one or more purposes described in section 501(c)(3), to one or more organizations then recognized or qualifying for such purposes, or to a federal, state, or local government for a public purpose. No remaining assets shall be distributed to a founder, director, officer, member of the religious community, or other private person except in satisfaction of lawful obligations.

3. Bylaws interface - provisions to lock before filing/organization

Bylaw element	v1.2 working rule
Board size	5 during formation where feasible; never fewer than 3; expansion to 7-11 within the founding period.
Director terms	Three-year terms, staggered as practicable; maximum two consecutive full terms before a one-year break, subject to narrow emergency exception.
Independence	At least a majority independent during formation; target $\geq 2/3$ independent at mature structure.
Selection without statutory members	Initial directors elected by incorporator or named in charter; later directors selected as the bylaws provide, with independent nominating process and board election.
Officers	President, Secretary, Treasurer and such other officers as the Board creates. President and Secretary must be different persons.
Chair	Independent Chair preferred; President/Executive Director should not serve as Chair after formation transition.
Reserved independent powers	Executive compensation, related-party transactions, senior-leader investigations, safeguarding, external financial review, and entrenched-right amendments.
Written action	Permit written board action only in a manner consistent with applicable Tennessee law and the bylaws; maintain signed consents with minutes.
Companions vs members	Companion is a religious identity only and creates no statutory corporate membership or voting rights.

4. Incorporator organizational action - model

Use after the Tennessee charter has been accepted if the initial directors were not already fully established by the charter. Attorney should confirm the exact sequence used in the final filing.

1. Formation acknowledgement. The incorporator acknowledges filing and acceptance of the Charter of [[LEGAL_NAME]], Inc. by the Tennessee Secretary of State on [[FORMATION_DATE]].
2. Election of initial directors. The incorporator elects the following initial directors, each having consented to serve: [[DIRECTOR_1]], [[DIRECTOR_2]], [[DIRECTOR_3]], [[DIRECTOR_4]], [[DIRECTOR_5]]. At least three must be natural persons; unused placeholders may be deleted if the initial lawful board consists of three or four persons.
3. Delivery of records. The incorporator delivers the filed Charter, this action, and formation records to the initial Board and thereafter has no governance authority by virtue of incorporator status alone.

Incorporator: Thomas Carter Signature: _____ Date: _____

5. Initial Board organizational meeting / unanimous written consent

The following resolutions may be used at the first Board meeting or converted to a signed unanimous written consent when lawful and appropriate. Tennessee currently allows board action without a meeting unless the charter/bylaws provide otherwise, when all directors consent to acting without a meeting and the required affirmative vote is obtained, with written consents retained in the minutes.

1. RESOLVED, that Ratify the filed Charter and formation acts.
2. RESOLVED, that Adopt the Bylaws and the selected nonmember governance schedule.
3. RESOLVED, that Ratify the Constitution of the Way v1.0 as the current religious constitutional baseline, expressly subordinate to civil law and the corporate Charter/Bylaws for civil governance.
4. RESOLVED, that Adopt the Teaching & Practice Baseline v1.0 and Companion Handbook v1.0 as current religious-operational documents subject to their review procedures.
5. RESOLVED, that Adopt the Institutional Integrity & Anti-Coercion Framework and associated conflicts, compensation, finance, safeguarding, complaints, investigations, discipline/appeals, exit/non-retaliation, pastoral ethics, revelation/doctrine, and external-review policies.
6. RESOLVED, that Appoint officers: President [[NAME]], Secretary [[NAME - MUST DIFFER FROM PRESIDENT]], Treasurer [[NAME]], and Chair [[NAME]].
7. RESOLVED, that Authorize application for an EIN after legal formation and designate the principal officer/responsible party for that application.
8. RESOLVED, that Authorize opening bank and payment accounts after EIN issuance under the approved authority matrix.
9. RESOLVED, that Approve a calendar fiscal year ending December 31.
10. RESOLVED, that Approve the conflict/independence disclosures of all directors and officers and record any recusals.
11. RESOLVED, that Establish the Governance & Nominating, Finance/Audit/Compensation, and Safeguarding & Institutional Integrity committees as staffing permits.
12. RESOLVED, that Authorize preparation and electronic submission of a full Form 1023 after final Board review of the activity narrative, financial projections, compensation arrangements, governing documents, and public-charity classification request.
13. RESOLVED, that Authorize a Founding Gathering Circle / House-in-Formation pilot subject to safeguarding, complaint-channel, finance, and public-claims controls.
14. RESOLVED, that Adopt a corporate records book and retention/security structure.

5.1 Signature / vote record

Director	Independent?	Present / consent	For	Against	Abstain / recused	Signature
[[DIRECTOR_1]]	[[Y/N]]					
[[DIRECTOR_2]]	[[Y/N]]					
[[DIRECTOR_3]]	[[Y/N]]					
[[DIRECTOR_4]]	[[Y/N]]					
[[DIRECTOR_5]]	[[Y/N]]					

6. Officer acceptance instruments

President / Executive Director

I, [[NAME]], accept appointment as President / Executive Director of [[LEGAL_NAME]], Inc., subject to the Charter, Bylaws, lawful Board resolutions, fiduciary duties, conflict-of-interest requirements, safeguarding obligations, and the following role limit: Subject to Board supervision; no authority to self-approve compensation, related-party transactions, senior-leader investigations, or entrenched-right changes.

Signature: _____ Date: _____

Secretary

I, [[NAME]], accept appointment as Secretary of [[LEGAL_NAME]], Inc., subject to the Charter, Bylaws, lawful Board resolutions, fiduciary duties, conflict-of-interest requirements, safeguarding obligations, and the following role limit: Responsible for minutes and authentication of corporate records as assigned; must be a different individual from the President.

Signature: _____ Date: _____

Treasurer

I, [[NAME]], accept appointment as Treasurer of [[LEGAL_NAME]], Inc., subject to the Charter, Bylaws, lawful Board resolutions, fiduciary duties, conflict-of-interest requirements, safeguarding obligations, and the following role limit: Oversees financial reporting and controls as delegated; does not displace Board fiduciary responsibility.

Signature: _____ Date: _____

Board Chair

I, [[NAME]], accept appointment as Board Chair of [[LEGAL_NAME]], Inc., subject to the Charter, Bylaws, lawful Board resolutions, fiduciary duties, conflict-of-interest requirements, safeguarding obligations, and the following role limit: Facilitates Board governance and executive oversight; preferred to be independent from executive staff.

Signature: _____ Date: _____

7. Controlled filing gates

Gate	Required evidence	Status now
G1 - legal name	Tennessee availability/confusion review; web/trademark/domain review appropriate to intended public use.	OPEN
G2 - directors	At least three natural persons willing and legally able to serve; formation target five.	OPEN - founder only
G3 - Secretary	A person other than the President willing to serve.	OPEN
G4 - addresses	Registered office in Tennessee; principal/mailling address; incorporator address.	PLACEHOLDERS
G5 - charter counsel review	Review final purpose, member, rights, founder-limit, and dissolution language.	PENDING
G6 - filing fee/interface	Verify current Tennessee fee and filing mechanism immediately before filing.	RECHECK AT FILING
G7 - organizational meeting	Signed incorporator/director actions and conflict disclosures.	POST-FILING
G8 - EIN	Apply only after legal formation; principal officer/responsible party identified.	POST-FILING

Gate	Required evidence	Status now
G9 - bank/accounting	EIN, filed charter, Board authorization, signer matrix, bookkeeping.	POST-EIN
G10 - Form 1023	Complete activity narrative, 3-year financials, compensation disclosures, governing documents, public-charity request, Pay.gov submission.	POST-BOARD

8. Current source notes

Source	Relevant point	URL
Tennessee Secretary of State - Business Forms & Fees	Domestic nonprofit Charter SS-4418 currently listed at \$100; name reservation currently \$20.	https://sos.tn.gov/businesses/forms-and-fees
Tenn. Code § 48-58-103 (2025)	Nonprofit board must consist of three or more natural persons.	https://law.justia.com/codes/tennessee/title-48/nonprofit-corporations/chapter-58/part-1/section-48-58-103/
Tenn. Code § 48-58-401 (2025)	Every corporation must have President and Secretary; same person cannot hold both offices simultaneously.	https://law.justia.com/codes/tennessee/title-48/nonprofit-corporations/chapter-58/part-4/section-48-58-401/
Tenn. Code § 48-58-104 (2025)	For a corporation without members, director selection follows charter/bylaws; absent another method, directors are elected by the Board.	https://law.justia.com/codes/tennessee/title-48/nonprofit-corporations/chapter-58/part-1/section-48-58-104/
Tenn. Code § 48-58-202 (2025)	Board action without meeting mechanics.	https://law.justia.com/codes/tennessee/title-48/nonprofit-corporations/chapter-58/part-2/section-48-58-202/
IRS Form 1023 Instructions	Organizing-document, public-charity and church-classification rules.	https://www.irs.gov/instructions/i1023